

January 21, 2020

589 U. S.

No. 19M91. DAHLEM *v.* LOUISIANA. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 18–1323. JUNE MEDICAL SERVICES L. L. C. ET AL. *v.* GEE, SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS; and

No. 18–1460. GEE, SECRETARY, LOUISIANA DEPARTMENT OF HEALTH AND HOSPITALS *v.* JUNE MEDICAL SERVICES L. L. C. ET AL. C. A. 5th Cir. [Certiorari granted, 588 U.S. 948.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 18–1447. REPUBLIC OF HUNGARY ET AL. *v.* SIMON ET AL. C. A. D. C. Cir.; and

No. 19–185. MUTOND ET AL. *v.* LEWIS. C. A. D. C. Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 18–9107. IN RE BRACKEN. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [589 U.S. 915] denied.

No. 19–351. FEDERAL REPUBLIC OF GERMANY ET AL. *v.* PHILIPP ET AL.; and

No. 19–520. PHILIPP ET AL. *v.* FEDERAL REPUBLIC OF GERMANY ET AL. C. A. D. C. Cir. The Solicitor General is invited to file a brief in these cases expressing the views of the United States.

No. 19–840. CALIFORNIA ET AL. *v.* TEXAS ET AL.; and

No. 19–841. UNITED STATES HOUSE OF REPRESENTATIVES *v.* TEXAS ET AL. C. A. 5th Cir. Motions of petitioners to expedite consideration of petitions for writs of certiorari denied.

No. 19–6596. HETTINGA *v.* LOUMENA. Ct. App. Cal., 6th App. Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until February 11, 2020, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 19–7055. IN RE ROSA; and

No. 19–7058. IN RE RANDALL. Petitions for writs of habeas corpus denied.

589 U.S.

January 21, 2020

No. 19–6702. IN RE CALDERON-LOPEZ. Petition for writ of mandamus denied.

No. 19–6874. IN RE LEONARD. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus dismissed. See this Court’s Rule 39.8.

Certiorari Denied

No. 18–9615. SORENSEN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 893 F. 3d 1060.

No. 19–205. CITY OF FLINT, MICHIGAN, ET AL. *v.* GUERTIN ET AL.; and

No. 19–350. BUSCH ET AL. *v.* GUERTIN ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 912 F. 3d 907.

No. 19–330. SHAH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 768 Fed. Appx. 637.

No. 19–401. HIGGS *v.* WILSON. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 167.

No. 19–595. O’DAY ET AL., INDIVIDUALLY AND ON BEHALF OF THE SUNEDISON, INC. RETIREMENT SAVINGS PLAN *v.* CHATILA ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 774 Fed. Appx. 708.

No. 19–616. W. A., INDIVIDUALLY AND ON BEHALF OF W. E., ET AL. *v.* HENDRICK HUDSON CENTRAL SCHOOL DISTRICT. C. A. 2d Cir. Certiorari denied. Reported below: 927 F. 3d 126.

No. 19–622. BELL *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 653 Pa. 515, 211 A. 3d 761.

No. 19–624. GRAF ET AL. *v.* HYUNG SEOK KOH ET UX. C. A. 7th Cir. Certiorari denied. Reported below: 933 F. 3d 836.

No. 19–626. HUFF ET AL. *v.* CHOATE. C. A. 10th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 484.

No. 19–629. STEWART ET AL. *v.* WILMINGTON SAVINGS FUND SOCIETY. Super. Ct. Pa. Certiorari denied. Reported below: 203 A. 3d 357.

No. 19–637. SERNA *v.* WEBSTER ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 757 Fed. Appx. 721.

January 21, 2020

589 U. S.

No. 19–639. *SHAO v. TSAN-KUEN WANG*. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 19–640. *CLARKE ET AL. v. GOODSON ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–642. *JACKSON v. LITTERAL*. C. A. 6th Cir. Certiorari denied.

No. 19–649. *N. E. L. ET AL. v. GILDNER ET AL.* C. A. 10th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 567.

No. 19–650. *BARNETTE v. PROF-2013–M4 LEGAL TITLE, BY U. S. BANK N. A., AS LEGAL TITLE TRUSTEE*. Ct. App. D. C. Certiorari denied.

No. 19–699. *MOUSTAKIS v. WISCONSIN DEPARTMENT OF JUSTICE*. Ct. App. Wis. Certiorari denied. Reported below: 2019 WI App 33, 388 Wis. 2d 144, 930 N. W. 2d 280.

No. 19–706. *FACEBOOK, INC. v. PATEL ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 932 F. 3d 1264.

No. 19–717. *SANDS v. BRENNAN, POSTMASTER GENERAL*. C. A. 6th Cir. Certiorari denied.

No. 19–738. *DOMINGO v. DEPARTMENT OF THE ARMY ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 748 Fed. Appx. 529.

No. 19–746. *CARBUTT v. COLORADO*. Ct. App. Colo. Certiorari denied.

No. 19–748. *LEPORE v. OFFICE OF PERSONNEL MANAGEMENT*. C. A. Fed. Cir. Certiorari denied. Reported below: 759 Fed. Appx. 912.

No. 19–751. *GUTIERREZ v. CALIFORNIA*. Ct. App. Cal., 1st App. Dist., Div. 4. Certiorari denied. Reported below: 27 Cal. App. 5th 1155, 238 Cal. Rptr. 3d 729.

No. 19–780. *NEWTON v. UNITED STATES*. C. A. 7th Cir. Certiorari denied.

No. 19–5457. *MUNKSGARD v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 913 F. 3d 1327.

No. 19–6585. *TOPA v. KERBS ET AL.* C. A. 11th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 606.

589 U. S.

January 21, 2020

No. 19–6590. *WHITTEN v. ATYIA ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 817.

No. 19–6598. *HERCENBERGER v. MARTIN.* Ct. App. Ore. Certiorari denied.

No. 19–6625. *JONES v. HUSS.* C. A. 6th Cir. Certiorari denied.

No. 19–6630. *HUNTER v. MURDOCH ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19–6642. *CHANNEL v. MARQUEZ ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–6646. *DENHAM v. CALIFORNIA.* Sup. Ct. Cal. Certiorari denied.

No. 19–6691. *SMITH v. INDIANA.* Ct. App. Ind. Certiorari denied. Reported below: 116 N. E. 3d 1107.

No. 19–6697. *PACK v. TRUMP, PRESIDENT OF THE UNITED STATES.* C. A. D. C. Cir. Certiorari denied. Reported below: 773 Fed. Appx. 7.

No. 19–6699. *MCWHORTER v. INDIANA.* Ct. App. Ind. Certiorari denied. Reported below: 117 N. E. 3d 614.

No. 19–6736. *COLOMBO v. KINKLE, RODIGER & SPRIGGS, ET AL.* Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied. Reported below: 35 Cal. App. 5th 407, 247 Cal. Rptr. 3d 403.

No. 19–6751. *WILLIAMS v. CALIFORNIA.* Ct. App. Cal., 1st App. Dist., Div. 4. Certiorari denied.

No. 19–6781. *LUNA-QUINTERO v. INDIANA.* Ct. App. Ind. Certiorari denied. Reported below: 126 N. E. 3d 55.

No. 19–6792. *SANCHEZ v. NOGAN, ADMINISTRATOR EAST JERSEY STATE PRISON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–6801. *PALOMAR v. MADDEN, WARDEN.* C. A. 9th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 859.

No. 19–6808. *SMITH v. COLLINS ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–6855. *LUIS MORALES v. LEWIS ET AL.* C. A. 9th Cir. Certiorari denied.

January 21, 2020

589 U. S.

No. 19–6873. *CARTER v. FLORIDA*. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 277 So. 3d 550.

No. 19–6876. *AGUIRRE, AKA AGUIRRE-ORCUTT, AKA HOLSTON-AGUIRRE, AKA HOLSTON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 866.

No. 19–6882. *THOMPSON v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 269.

No. 19–6890. *PEARSON v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 787 Fed. Appx. 511.

No. 19–6891. *RAHIMI v. UNITED STATES*. C. A. 2d Cir. Certiorari denied. Reported below: 794 Fed. Appx. 4.

No. 19–6904. *MAHAM v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 767 Fed. Appx. 532.

No. 19–6909. *ROSA v. RHODES, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–6913. *BENJAMIN v. SAAD, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 648.

No. 19–6915. *THOMPSON v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 741 Fed. Appx. 172.

No. 19–6920. *BOYD v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 140.

No. 19–6923. *ALANIZ v. FRAUENHEIM, WARDEN*. C. A. 9th Cir. Certiorari denied.

No. 19–6925. *TAALIBDIN v. MAHALLY, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT DALLAS, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19–6930. *JACKSON v. UNITED STATES*. C. A. 6th Cir. Certiorari denied.

No. 19–6933. *ABDU v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 135.

No. 19–6949. *ROYAL v. CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS*. Sup. Ct. Va. Certiorari denied.

589 U.S.

January 21, 2020

No. 19–6950. *ROGERS v. SOSS*, ACTING WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 879.

No. 19–6952. *CLARDY v. GILMORE ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 958.

No. 19–6994. *MANIKOWSKI v. INCH*, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 19–7005. *WOOD v. VIRGINIA*. Sup. Ct. Va. Certiorari denied.

No. 19–307. *MCKEEVER v. BARR*, ATTORNEY GENERAL. C. A. D. C. Cir. Certiorari denied. Reported below: 920 F. 3d 842.

Statement of JUSTICE BREYER respecting the denial of certiorari.

In the decision below, the Court of Appeals for the District of Columbia Circuit held that a district court could not authorize the release of grand jury information *except* as specifically enumerated in Federal Rule of Criminal Procedure 6(e). 920 F. 3d 842, 850 (2019). That decision is in conflict with the decisions of several other Circuits, which have indicated that district courts retain inherent authority to release grand jury material in other appropriate cases. See, e.g., *Carlson v. United States*, 837 F. 3d 753, 766–767 (CA7 2016); *In re Craig*, 131 F. 3d 99, 105 (CA2 1997); *In re Hastings*, 735 F. 2d 1261, 1271–1272 (CA11 1984). It also appears to conflict with the considered views of the Rules Committee. See Advisory Committee Minutes on Crim. Rules 7 (Apr. 22–23 2012), https://www.uscourts.gov/sites/default/files/fr_import/criminal-min-04-2012.pdf.

Whether district courts retain authority to release grand jury material outside those situations specifically enumerated in the Rules, or in situations like this, is an important question. It is one I think the Rules Committee both can and should revisit.

No. 19–636. *ESTATE OF BOYLAND ET AL. v. DEPARTMENT OF AGRICULTURE ET AL.* C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition. Reported below: 913 F. 3d 117.

No. 19–666. *JENN-CHING LUO v. LOWE’S HOME CENTERS, LLC, ET AL.* Super. Ct. Pa. Certiorari denied. JUSTICE

January 21, 24, 2020

589 U. S.

BREYER took no part in the consideration or decision of this petition. Reported below: 201 A. 3d 815.

No. 19–6652. *HIRANO v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 361.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG joins, dissenting.

I dissent for the reasons set out in *Brown v. United States*, 586 U. S. 953 (2018) (SOTOMAYOR, J., dissenting from denial of certiorari).

Rehearing Denied

No. 18–6331. *ROBINSON v. FLORIDA*, 586 U. S. 1053;

No. 18–8989. *STOUTAMIRE v. MORGAN, WARDEN*, 589 U. S. 932;

No. 19–339. *SONNIER v. CATHOLIC FOUNDATION OF THE DIOCESE OF LAFAYETTE ET AL.*, 589 U. S. 1069;

No. 19–360. *KONIECZKO ET AL. v. ADVENTIST HEALTH SYSTEM/SUNBELT INC. ET AL.*, 589 U. S. 1081;

No. 19–370. *SILVA-RAMIREZ v. HOSPITAL ESPANOL AUXILIO MUTUO DE PUERTO RICO, INC., ET AL.*, 589 U. S. 1081;

No. 19–395. *ALESSIO v. UNITED AIRLINES, INC.*, 589 U. S. 1081;

No. 19–396. *SIMON v. DEPARTMENT OF JUSTICE ET AL.*, 589 U. S. 1070;

No. 19–425. *OGUNSULA v. BARR, ATTORNEY GENERAL, ET AL.*, 589 U. S. 1082;

No. 19–5783. *TOWNSEND v. VASQUEZ*, 589 U. S. 1049;

No. 19–6032. *LANGSTON v. MISSOURI BOARD OF PROBATION AND PAROLE*, 589 U. S. 1083;

No. 19–6128. *MCCARTHREN v. UNITED STATES*, 589 U. S. 1063; and

No. 19–6202. *RODRIGUEZ-SANTANA v. UNITED STATES*, 589 U. S. 1064. Petitions for rehearing denied.

JANUARY 24, 2020

Miscellaneous Order

No. 19A766. *HENRY SCHEIN, INC. v. ARCHER & WHITE SALES, INC.* Application for stay, presented to JUSTICE ALITO, and by him referred to the Court, granted, and the proceedings in the

589 U. S.

January 24, 27, 2020

United States District Court for the Eastern District of Texas, case No. 2:12-cv-572, are stayed pending the timely filing and disposition of a petition for writ of certiorari. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. JUSTICE GINSBURG would deny the application.

JANUARY 27, 2020

Certiorari Granted—Vacated and Remanded

No. 19–6684. DAVIS *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Rehaif v. United States*, 588 U. S. 225 (2019). Reported below: 777 Fed. Appx. 360.

Certiorari Dismissed

No. 19–373. WALKER *v.* UNITED STATES. C. A. 6th Cir. [Certiorari granted, 589 U. S. 1066.] It appearing that petitioner died January 22, 2020, the writ of certiorari is dismissed.

Miscellaneous Orders

No. 19A729 (19–6971). ROBERTS *v.* TEXAS. Ct. App. Tex., 4th Dist. Application to recall and stay the mandate, addressed to JUSTICE SOTOMAYOR and referred to the Court, denied.

No. 19A785. DEPARTMENT OF HOMELAND SECURITY ET AL. *v.* NEW YORK ET AL. D. C. S. D. N. Y. Application for stay, presented to JUSTICE GINSBURG, and by her referred to the Court, granted, and the District Court's October 11, 2019, orders granting preliminary injunction are stayed pending disposition of the Government's appeal in the United States Court of Appeals for the Second Circuit and disposition of the Government's petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. JUSTICE GINSBURG, JUSTICE BREYER, JUSTICE SOTOMAYOR, and JUSTICE KAGAN would deny the application.

JUSTICE GORSUCH, with whom JUSTICE THOMAS joins, concurring.

On October 10, 2018, the Department of Homeland Security began a rulemaking process to define the term “public charge,” as it is used in the Nation’s immigration laws. Approximately 10 months and 266,000 comments later, the agency issued a final rule. Litigation swiftly followed, with a number of States, organizations, and individual plaintiffs variously alleging that the new definition violates the Constitution, the Administrative Procedure Act, and the immigration laws themselves. These plaintiffs have urged courts to enjoin the rule’s enforcement not only as it applies to them, or even to some definable group having something to do with their claimed injury, but as it applies to *anyone*.

These efforts have met with mixed results. The Northern District of California ordered the government not to enforce the new rule within a hodge-podge of jurisdictions—California, Oregon, Maine, Pennsylvania, and the District of Columbia. The Eastern District of Washington entered a similar order, but went much farther geographically, enjoining the government from enforcing its rule globally. But both of those orders were soon stayed by the Ninth Circuit which, in a 59-page opinion, determined the government was likely to succeed on the merits. Meanwhile, across the country, the District of Maryland entered its own universal injunction, only to have that one stayed by the Fourth Circuit. And while all these developments were unfolding on the coasts, the Northern District of Illinois was busy fashioning its own injunction, this one limited to enforcement within the State of Illinois.

If all of this is confusing, don’t worry, because none of it matters much at this point. Despite the fluid state of things—some interim wins for the government over here, some preliminary relief for plaintiffs over there—we now have an injunction to rule them all: the one before us, in which a single judge in New York enjoined the government from applying the new definition to anyone, without regard to geography or participation in this or any other lawsuit. The Second Circuit declined to stay this particular universal injunction, and so now, after so many trips up and down and around the judicial map, the government brings its well-rehearsed arguments here.

Today the Court (rightly) grants a stay, allowing the government to pursue (for now) its policy everywhere save Illinois.

But, in light of all that's come before, it would be delusional to think that one stay today suffices to remedy the problem. The real problem here is the increasingly common practice of trial courts ordering relief that transcends the cases before them. Whether framed as injunctions of “nationwide,” “universal,” or “cosmic” scope, these orders share the same basic flaw—they direct how the defendant must act toward persons who are not parties to the case.

Equitable remedies, like remedies in general, are meant to redress the injuries sustained by a particular plaintiff in a particular lawsuit. When a district court orders the government not to enforce a rule against the plaintiffs in the case before it, the court redresses the injury that gives rise to its jurisdiction in the first place. But when a court goes further than that, ordering the government to take (or not take) some action with respect to those who are strangers to the suit, it is hard to see how the court could still be acting in the judicial role of resolving cases and controversies. Injunctions like these thus raise serious questions about the scope of courts' equitable powers under Article III. See *Trump v. Hawaii*, 585 U. S. 667, 712 (2018) (THOMAS, J., concurring); Bray, Multiple Chancellors: Reforming the National Injunction, 131 Harv. L. Rev. 417, 471–472 (2017) (Bray); Morley, De Facto Class Actions? Plaintiff- and Defendant-Oriented Injunctions in Voting Rights, Election Law, and Other Constitutional Cases, 39 Harv. J. L. & Pub. Pol'y 487, 523–527 (2016).

It has become increasingly apparent that this Court must, at some point, confront these important objections to this increasingly widespread practice. As the brief and furious history of the regulation before us illustrates, the routine issuance of universal injunctions is patently unworkable, sowing chaos for litigants, the government, courts, and all those affected by these conflicting decisions. Rather than spending their time methodically developing arguments and evidence in cases limited to the parties at hand, both sides have been forced to rush from one preliminary injunction hearing to another, leaping from one emergency stay application to the next, each with potentially nationwide stakes, and all based on expedited briefing and little opportunity for the adversarial testing of evidence.

This is not normal. Universal injunctions have little basis in traditional equitable practice. Bray 425–427. Their use has proliferated only in very recent years. See *Trump*, 585 U. S., at 719–720

January 27, 2020

589 U. S.

(THOMAS, J., concurring). And they hardly seem an innovation we should rush to embrace. By their nature, universal injunctions tend to force judges into making rushed, high-stakes, low-information decisions. Bray 461–462. The traditional system of lower courts issuing interlocutory relief limited to the parties at hand may require litigants and courts to tolerate interim uncertainty about a rule’s final fate and proceed more slowly until this Court speaks in a case of its own. But that system encourages multiple judges and multiple circuits to weigh in only after careful deliberation, a process that permits the airing of competing views that aids this Court’s own decisionmaking process. *Ibid.* The rise of nationwide injunctions may just be a sign of our impatient times. But good judicial decisions are usually tempered by older virtues.

Nor do the costs of nationwide injunctions end there. There are currently more than 1,000 active and senior district court judges, sitting across 94 judicial districts, and subject to review in 12 regional courts of appeal. Because plaintiffs generally are not bound by adverse decisions in cases to which they were not a party, there is a nearly boundless opportunity to shop for a friendly forum to secure a win nationwide. *Id.*, at 457–461. The risk of winning conflicting nationwide injunctions is real too. *Id.*, at 462–464. And the stakes are asymmetric. If a single successful challenge is enough to stay the challenged rule across the country, the government’s hope of implementing any new policy could face the long odds of a straight sweep, parlaying a 94-to-0 win in the district courts into a 12-to-0 victory in the courts of appeal. A single loss and the policy goes on ice—possibly for good, or just as possibly for some indeterminate period of time until another court jumps in to grant a stay. And all that can repeat, *ad infinitum*, until either one side gives up or this Court grants certiorari. What in this gamesmanship and chaos can we be proud of?

I concur in the Court’s decision to issue a stay. But I hope, too, that we might at an appropriate juncture take up some of the underlying equitable and constitutional questions raised by the rise of nationwide injunctions.

No. D–3035. IN RE DISBARMENT OF BLYTHE. Disbarment entered. [For earlier order herein, see 586 U. S. 962.]

No. D–3036. IN RE DISBARMENT OF KWASNIK. Disbarment entered. [For earlier order herein, see 586 U. S. 962.]

589 U. S.

January 27, 2020

No. D-3041. IN RE DISBARMENT OF DURBAN. Disbarment entered. [For earlier order herein, see 586 U. S. 963.]

No. D-3042. IN RE DISBARMENT OF SMITH. Disbarment entered. [For earlier order herein, see 588 U. S. 933.]

No. D-3043. IN RE DISBARMENT OF LYNCH. Disbarment entered. [For earlier order herein, see 588 U. S. 933.]

No. D-3045. IN RE DISBARMENT OF MCLEOD. Disbarment entered. [For earlier order herein, see 588 U. S. 933.]

No. D-3046. IN RE DISBARMENT OF UGWUONYE. Disbarment entered. [For earlier order herein, see 588 U. S. 933.]

No. D-3047. IN RE DISBARMENT OF SILBERMAN. Disbarment entered. [For earlier order herein, see 588 U. S. 933.]

No. D-3048. IN RE DISBARMENT OF PACKARD. Disbarment entered. [For earlier order herein, see 588 U. S. 933.]

No. D-3050. IN RE DISBARMENT OF MORAN. Disbarment entered. [For earlier order herein, see 588 U. S. 934.]

No. D-3053. IN RE DISBARMENT OF BRUNER. Disbarment entered. [For earlier order herein, see 588 U. S. 939.]

No. 19M92. OWENS *v.* UNIVERSITY OF SOUTH CAROLINA ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 19M93. PATTERSON *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA. Motion for leave to proceed as a veteran denied.

No. 19M94. SANTA *v.* HERR ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time under this Court's Rule 14.5 denied.

No. 65, Orig. TEXAS *v.* NEW MEXICO. Motion for review of the River Master's final determination set for oral argument in due course. [For earlier order herein, see, *e. g.*, 589 U. S. 1032.]

No. 142, Orig. FLORIDA *v.* GEORGIA. Second Report of the Special Master received and ordered filed. Exceptions to the Report, with supporting briefs, may be filed within 45 days. Replies, if any, with supporting briefs, may be filed within 30 days. Surreplies, if any, with supporting briefs, may be filed within 30

January 27, 2020

589 U. S.

days. Motion for allowance of fees and disbursements filed by the Special Master's assistant granted, and the Special Master's assistant is awarded a total of \$10,036.43, for the period November 6, 2018, through December 5, 2019, to be paid equally by the parties. [For earlier order herein, see, *e. g.*, 585 U. S. 1057.]

No. 18–9526. *McGIRT v. OKLAHOMA*. Ct. Crim. App. Okla. [Certiorari granted, 589 U. S. 1119.] Motion for appointment of counsel granted, and Ian H. Gershengorn, Esq., of Washington, D. C., is appointed to serve as counsel for petitioner.

No. 19–465. *CHIAFALO ET AL. v. WASHINGTON*. Sup. Ct. Wash.; and

No. 19–518. *COLORADO DEPARTMENT OF STATE v. BACA ET AL.* C. A. 10th Cir. [Certiorari granted, 589 U. S. 1165.] Petitioners in No. 19–465 and respondents in No. 19–518 shall file opening and reply briefs on the merits under the schedule set forth in this Court's Rules 25.1 and 25.3. Respondent in No. 19–465 and petitioner in No. 19–518 shall file response briefs on the merits under the schedule set forth in Rule 25.2.

No. 19–648. *CACI PREMIER TECHNOLOGY, INC. v. AL SHIMARI ET AL.* C. A. 4th Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 19–7147. *IN RE SMITH*. Petition for writ of habeas corpus denied.

No. 19–7015. *IN RE HARRIS*;

No. 19–7047. *IN RE SPENCER*; and

No. 19–7049. *IN RE SPENCER*. Petitions for writs of mandamus denied.

No. 19–6726. *IN RE BYRD*. Petition for writ of mandamus and/or prohibition denied.

Certiorari Denied

No. 19–353. *TRADING TECHNOLOGIES INTERNATIONAL, INC. v. IBG LLC ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 921 F. 3d 1084.

No. 19–510. *BANEGAS GOMEZ v. BARR, ATTORNEY GENERAL*. C. A. 2d Cir. Certiorari denied. Reported below: 922 F. 3d 101.

589 U.S.

January 27, 2020

No. 19–517. *BARBOSA ET AL. v. DEPARTMENT OF HOMELAND SECURITY ET AL.* C. A. D. C. Cir. Certiorari denied. Reported below: 916 F. 3d 1068.

No. 19–522. *TRADING TECHNOLOGIES INTERNATIONAL, INC. v. IBG LLC ET AL.* C. A. Fed. Cir. Certiorari denied. Reported below: 767 Fed. Appx. 1006.

No. 19–534. *KADRIA v. BARR, ATTORNEY GENERAL.* C. A. 2d Cir. Certiorari denied. Reported below: 779 Fed. Appx. 799.

No. 19–551. *CALZONE v. OLSON, SUPERINTENDENT, MISSOURI STATE HIGHWAY PATROL.* C. A. 8th Cir. Certiorari denied. Reported below: 931 F. 3d 722.

No. 19–574. *POOLE, COMMISSIONER, NEW YORK STATE OFFICE OF CHILDREN AND FAMILY SERVICES v. NEW YORK STATE CITIZENS’ COALITION FOR CHILDREN.* C. A. 2d Cir. Certiorari denied. Reported below: 922 F. 3d 69.

No. 19–582. *EDMONDSON v. LILLISTON FORD INC. ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 767 Fed. Appx. 388.

No. 19–651. *DEROSE v. VILLAGE OF ORLAND PARK, ILLINOIS, ET AL.* C. A. 7th Cir. Certiorari denied. Reported below: 928 F. 3d 556.

No. 19–654. *KALEIDA HEALTH, DBA BUFFALO GENERAL MEDICAL CENTER v. BIONDO.* C. A. 2d Cir. Certiorari denied. Reported below: 935 F. 3d 68.

No. 19–658. *J. G., BY AND THROUGH HIS PARENTS, GREENBERG ET AL. v. HAWAII DEPARTMENT OF EDUCATION ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 567.

No. 19–660. *SILVER v. HAMRICK & EVANS, LLP.* Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 19–674. *MARTIN v. NATIONAL GENERAL ASSURANCE CO.* Sup. Ct. Del. Certiorari denied. Reported below: 212 A. 3d 269.

No. 19–681. *SHALABY v. UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF ILLINOIS.* C. A. 7th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 249.

January 27, 2020

589 U. S.

No. 19–683. *MOSS v. ATKINSON, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 767 Fed. Appx. 466.

No. 19–684. *SAUNDERS ET UX. v. DEUTSCHE BANK NATIONAL TRUST CO.* Sup. Ct. Va. Certiorari denied.

No. 19–696. *HAENDEL v. REED ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 759 Fed. Appx. 185.

No. 19–697. *PAVATT v. SHARP, INTERIM WARDEN*. C. A. 10th Cir. Certiorari denied. Reported below: 928 F. 3d 906.

No. 19–700. *RAMOS GONZALEZ ET AL. v. SCOTIABANK DE PUERTO RICO ET AL.* Sup. Ct. P. R. Certiorari denied.

No. 19–705. *SHARPE v. UNITED STATES*. C. A. Fed. Cir. Certiorari denied. Reported below: 935 F. 3d 1352.

No. 19–712. *HAMP’S CONSTRUCTION, LLC v. INLAND MARINE SERVICES, L. L. C.* Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2018–1152 (La. App. 1 Cir. 4/12/19).

No. 19–724. *ARAKAKI v. BRENNAN, POSTMASTER GENERAL, ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 771 Fed. Appx. 783.

No. 19–762. *OWNER OPERATOR INDEPENDENT DRIVERS ASSN., INC., ET AL. v. PENNSYLVANIA TURNPIKE COMMISSION ET AL.* C. A. 3d Cir. Certiorari denied. Reported below: 934 F. 3d 283.

No. 19–772. *DIAZ v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 941 F. 3d 729.

No. 19–809. *BONIN v. UNITED STATES*. C. A. 7th Cir. Certiorari denied. Reported below: 932 F. 3d 523.

No. 19–5638. *LEE v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 252 So. 3d 1221.

No. 19–5889. *TORRES-ARROYO v. NEW JERSEY*. Super. Ct. N. J., App. Div. Certiorari denied.

No. 19–6094. *HERRERA-SEGOVIA v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 772 Fed. Appx. 210.

No. 19–6191. *K. N. ET UX. v. MONTANA DEPARTMENT OF PUBLIC HEALTH AND HUMAN SERVICES*. Sup. Ct. Mont. Certiorari denied. Reported below: 396 Mont. 545, 438 P. 3d 792.

589 U. S.

January 27, 2020

No. 19–6214. *FUQUEN v. EVERITT*. Ct. Sp. App. Md. Certiorari denied. Reported below: 240 Md. App. 729.

No. 19–6289. *MOHR v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 232.

No. 19–6306. *MOTA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 753 Fed. Appx. 470.

No. 19–6320. *WILLIAMS v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 379.

No. 19–6372. *PARSON v. UNITED STATES*. C. A. 11th Cir. Certiorari denied.

No. 19–6655. *MATHIS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 816.

No. 19–6657. *SMITH v. SCOTT ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19–6660. *SCHERMERHORN v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19–6681. *WILLIS v. TERRITORY OF THE VIRGIN ISLANDS*. Sup. Ct. V. I. Certiorari denied. Reported below: 71 V. I. 789.

No. 19–6690. *MAHANY v. CITY OF BUFFALO POLICE DEPARTMENT ET AL.* C. A. 2d Cir. Certiorari denied. Reported below: 777 Fed. Appx. 547.

No. 19–6694. *SUNDY v. CHRISTIAN, JUDGE, ET AL.* Sup. Ct. Ga. Certiorari denied.

No. 19–6695. *RIGWAN v. NEUS* (Reported below: 298 So. 3d 591); and *RIGWAN v. NEUS ET AL.* (298 So. 3d 32). Dist. Ct. App. Fla., 3d Dist. Certiorari denied.

No. 19–6713. *HORTON v. COCHRAN*. C. A. 11th Cir. Certiorari denied.

No. 19–6714. *GOODMAN v. PEARSON, WARDEN*. C. A. 4th Cir. Certiorari denied. Reported below: 775 Fed. Appx. 105.

No. 19–6722. *LEACH v. UNITED STATES*. C. A. 4th Cir. Certiorari denied.

No. 19–6724. *ZARUM, AS PERSONAL REPRESENTATIVE OF THE ESTATE OF GUNDERSON v. HOAG MEMORIAL HOSPITAL PRESBY-*

January 27, 2020

589 U. S.

TERIAN ET AL. Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied.

No. 19-6727. *ANDREWS v. NAGY, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19-6728. *HEREDIA v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 278 So. 3d 34.

No. 19-6730. *HARINARAIN v. KAUFFMAN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT HUNTINGDON, ET AL.* C. A. 3d Cir. Certiorari denied.

No. 19-6731. *HENRY v. WARREN, WARDEN*. C. A. 6th Cir. Certiorari denied.

No. 19-6732. *IVIE v. WASHINGTON*. Ct. App. Wash. Certiorari denied. Reported below: 7 Wash. App. 2d 1025.

No. 19-6733. *DURHAM v. SHAPIRO, ATTORNEY GENERAL OF PENNSYLVANIA*. C. A. 3d Cir. Certiorari denied.

No. 19-6734. *LOPEZ v. LOPEZ*. Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied.

No. 19-6737. *LITTLE v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 275 So. 3d 1207.

No. 19-6738. *SARRINGAR v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Certiorari denied.

No. 19-6741. *JOAQUIN RAMIREZ v. BLOOM ET AL.* C. A. 2d Cir. Certiorari denied.

No. 19-6742. *PRIETO v. INCH, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.* Sup. Ct. Fla. Certiorari denied.

No. 19-6743. *NELSON v. TEXAS*. Ct. App. Tex., 6th Dist. Certiorari denied.

No. 19-6744. *MERCK v. MINNESOTA SUPREME COURT ET AL.* C. A. 8th Cir. Certiorari denied.

No. 19-6745. *PAUL v. FLORIDA*. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 278 So. 3d 39.

No. 19-6749. *JOHNSON v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 280 So. 3d 474.

589 U.S.

January 27, 2020

No. 19–6750. *CEASAR v. LOUISIANA*. Sup. Ct. La. Certiorari denied. Reported below: 2018–01948 (La. 8/12/19), 279 So. 3d 920.

No. 19–6754. *VIZCARRA MEDINA v. CALIFORNIA*. Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied.

No. 19–6762. *WIMBERLEY v. SACRAMENTO*. C. A. 9th Cir. Certiorari denied.

No. 19–6763. *WHITE v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 308 So. 3d 86.

No. 19–6765. *MCNAIR v. NORTH CAROLINA*. Ct. App. N. C. Certiorari denied. Reported below: 253 N. C. App. 178, 799 S. E. 2d 631.

No. 19–6767. *TRUE v. KELLEY, DIRECTOR, ARKANSAS DEPARTMENT OF CORRECTION*. C. A. 8th Cir. Certiorari denied.

No. 19–6768. *VANDERMEULEN v. LECLAIRE ET AL.* C. A. 9th Cir. Certiorari denied. Reported below: 773 Fed. Appx. 951.

No. 19–6770. *CHIU v. FIRST GROUP AMERICA ET AL.* Ct. App. Ore. Certiorari denied. Reported below: 295 Ore. App. 668, 433 P. 3d 787.

No. 19–6771. *PARR v. RODRIGUEZ*. C. A. 10th Cir. Certiorari denied. Reported below: 778 Fed. Appx. 569.

No. 19–6777. *ANDERSON v. FLORIDA*. Sup. Ct. Fla. Certiorari denied.

No. 19–6779. *STEVENS v. VANNOY, WARDEN, ET AL.* C. A. 5th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 233.

No. 19–6780. *KINNEY v. OHIO*. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2019-Ohio-2567.

No. 19–6782. *MALLARD v. NEXT DAY TEMPS ET AL.* Sup. Ct. Va. Certiorari denied.

No. 19–6787. *MITCHELL v. MILLER, MAGISTRATE JUDGE, ET AL.* C. A. 4th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 73.

No. 19–6788. *ROBLERO v. FLORIDA*. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 280 So. 3d 475.

January 27, 2020

589 U. S.

No. 19–6817. *WHEELER v. NEAL*, SUPERINTENDENT, INDIANA STATE PRISON. C. A. 7th Cir. Certiorari denied.

No. 19–6822. *COZZI v. AMERICAN STOCK EXCHANGE ET AL.* Ct. App. N. Y. Certiorari denied. Reported below: 33 N. Y. 3d 1129, 132 N. E. 3d 1090.

No. 19–6829. *WASHINGTON v. DELEON ET AL.* C. A. 9th Cir. Certiorari denied.

No. 19–6861. *HENDERSON v. ARKANSAS*. Ct. App. Ark. Certiorari denied. Reported below: 2019 Ark. App. 220, 575 S. W. 3d 617.

No. 19–6867. *LUIS MAYA v. DEPARTMENT OF HOMELAND SECURITY ET AL.* C. A. 11th Cir. Certiorari denied.

No. 19–6900. *SMITH v. WILKIE*, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied.

No. 19–6935. *KING v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 880.

No. 19–6936. *VIGIO-APONTE v. UNITED STATES*; and

No. 19–6947. *RODRIGUEZ-MARTINEZ v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 939 F. 3d 16.

No. 19–6940. *PETROSKE v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 928 F. 3d 767.

No. 19–6941. *COLLINS v. UNITED STATES*. C. A. 1st Cir. Certiorari denied.

No. 19–6948. *SPRY v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 70.

No. 19–6953. *DAVIS v. UNITED STATES*. C. A. 11th Cir. Certiorari denied. Reported below: 767 Fed. Appx. 714.

No. 19–6960. *TULIN v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 776 Fed. Appx. 108.

No. 19–6961. *NAVARRO v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 19–6968. *BRUMBACH v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 929 F. 3d 791.

589 U.S.

January 27, 2020

No. 19–6970. *SULLIVAN v. WYOMING*. Sup. Ct. Wyo. Certiorari denied. Reported below: 2019 WY 71, 444 P. 3d 1257.

No. 19–6972. *SANCHEZ-MORA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 939 F. 3d 16.

No. 19–6973. *WIGGINS ET AL. v. UNITED STATES*. C. A. 6th Cir. Certiorari denied. Reported below: 774 Fed. Appx. 288.

No. 19–6975. *BENNETT v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 780 Fed. Appx. 195.

No. 19–6995. *KING v. UNITED STATES*. C. A. 9th Cir. Certiorari denied.

No. 19–6998. *KOFALT v. UNITED STATES*. C. A. 3d Cir. Certiorari denied.

No. 19–7006. *DRUMMOND v. UNITED STATES*. C. A. 4th Cir. Certiorari denied. Reported below: 925 F. 3d 681.

No. 19–7008. *HERNANDEZ-ZAVALA v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 770 Fed. Appx. 816.

No. 19–7014. *GAFFNEY v. UNITED STATES*. C. A. 8th Cir. Certiorari denied.

No. 19–7020. *GARAY v. UNITED STATES*. C. A. 9th Cir. Certiorari denied. Reported below: 938 F. 3d 1108.

No. 19–7026. *GUY v. OHIO*. Ct. App. Ohio, 10th App. Dist., Franklin County. Certiorari denied.

No. 19–7034. *JOE v. UNITED STATES*. C. A. 10th Cir. Certiorari denied. Reported below: 785 Fed. Appx. 528.

No. 19–7035. *LOWRY v. UNITED STATES*. C. A. 8th Cir. Certiorari denied. Reported below: 935 F. 3d 638.

No. 19–7038. *LEE v. UNITED STATES*. C. A. 5th Cir. Certiorari denied. Reported below: 777 Fed. Appx. 782.

No. 19–7041. *RAMIREZ-RIVERA v. UNITED STATES*. C. A. 1st Cir. Certiorari denied. Reported below: 933 F. 3d 20.

No. 19–7042. *ROSADO v. UNITED STATES*. C. A. 3d Cir. Certiorari denied. Reported below: 785 Fed. Appx. 81.